

Calendar line 1

Case Name: ESTATE OF JOHN SHEFFERLY

Case No.: 26PR201682

INTRODUCTION

Decedent John Shefferly (“Decedent”) passed away intestate on January 6, 2026. The court appointed Elizabeth Cassidy (“Personal Representative”) as personal representative of Decedent’s estate.

Currently before the court is Personal Representative’s motion for an order for production of Decedent’s Google Account contents. The motion is unopposed.

DISCUSSION

Personal Representative seeks an order compelling Google to provide her with the contents of Decedent’s Google Account. Probate Code section 876 provides:

If a deceased user consented to or a court directs disclosure of the content of electronic communications of the user, the custodian^[1] shall disclose to the personal representative of the estate of the user the content of an electronic communication sent or received by the user if the personal representative gives to the custodian all of the following:

- (a) A written request for disclosure in physical or electronic form.
- (b) A certified copy of the death certificate of the user.
- (c) A certified copy of the letter of appointment of the representative, a small-estate affidavit under Section 13101, or court order.
- (d) Unless the user provided direction using an online tool, a copy of the user’s will, trust, power of attorney, or other record evidencing the user’s consent to disclosure of the content of electronic communications.
- (e) If requested by the custodian, any of the following:

- (3) An order of the court finding any of the following:
 - (A) That the user had a specific account with the custodian, identifiable by the information specified in paragraph (1).
 - (B) That disclosure of the content of the user’s electronic communications would not violate Chapter 121 (commencing with Section 2701) of Part 1 of Title 18 of, and Section 222 of Title 47 of, the United States Code, or other applicable law.
 - (C) Unless the user provided direction using an online tool, that the user consented to disclosure of the content of electronic communications.
 - (D) That disclosure of the content of electronic communications of a user is reasonably necessary for estate administration.

¹ “Custodian” means a person that carries, maintains, processes, receives, or stores a digital asset of a user. (Prob. Code, § 871, subd. (f).) In this instance, the custodian is Google.

Probate Code section 881, subdivision (a) provides, “Not later than 60 days after receipt of the information required under Sections 876 to 879, inclusive, a custodian shall comply with a request under this part from a fiduciary or designated recipient to disclose digital assets or terminate an account. If the custodian fails to comply with a request, the fiduciary or designated recipient may apply to the court for an order directing compliance.” “An order under subdivision (a) directing compliance shall contain a finding that compliance is not in violation of Section 2702 of Title 18 of the United States Code.” (Prob. Code, § 881, subd. (b).)

Here, Personal Representative has contacted Google to attempt to gain access to Decedent’s accounts but Google is requesting a court order before it will provide her with access. With respect to the findings the court must make, Personal Representative has provided a declaration indicating that Decedent possessed a Google account under the email address jshefferly89@gmail.com. (Declaration of Elizabeth Cassidy in Support of Motion, ¶ 4.) She further indicates that Decedent did not provide any direction using an online tool. (*Id.* at ¶ 7.) She also contends that the disclosure is necessary to assist her in locating Decedent’s assets as Decedent maintained a folder on his Google Drive listing his accounts on various online platforms. (*Id.* at ¶ 6.) Finally, with respect to the legality of the disclosure, a personal representative is authorized to access a decedent’s digital assets. (See Prob. Code, §§ 880, subds. (c)(1)&(d) [indicating that a fiduciary has the right to access digital assets]; 871, subd. (l) [“ ‘Fiduciary’ means an original, additional, or successor personal representative, conservator, agent, or trustee.”].)

Accordingly, the motion is GRANTED. The Court will sign the proposed order provided by Personal Representative.